

Submission on the Principles of the Treaty of Waitangi Bill

Submitter details:

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Introduction

1. The Environmental Defence Society Incorporated (**EDS**) is an environmental non-government organisation focused on legal advocacy and policy research, and its analysis of the Principles of the Treaty of Waitangi Bill (**Bill**) is formed through that lens.
2. The context for our submission is therefore a deep understanding and respect for the rule of law and the institutions and procedures that underpin our democracy.
3. In its environmental advocacy, EDS works constructively and cooperatively with iwi and hāpu to protect the environment. It has done so for many decades. This comes from a perspective of the desirability of active engagement and respect for te ao Māori values and tikanga.
4. EDS opposes the Bill because it is based on flawed understandings of the Treaty of Waitangi and Te Tiriti o Waitangi, wrongly attempts to re-write parts of Aotearoa New Zealand's constitution and is driving dissension and discord amongst our peoples. It should not proceed.

Flawed understanding in the Bill

5. The so-called principles in the Bill cannot be reconciled with the wording in Te Tiriti o Waitangi. In this contention we rely on the analysis of many Treaty scholars who have made submissions on the Bill and published extensively over many years.
6. The existing legal and regulatory framework for applying the principles of the treaty works very well in resource management practice. The principles are applied flexibly but in ways that are workable, predictable, and effective, both for development and

environmental protection. They often provide clear guidance in making regional and district plans, and deciding resource consent applications.

7. In our practical experience, most environmental managers, consultants, councils and the courts are skilled and comfortable using the existing framework.

Constitutionally inappropriate

8. It would be inappropriate for Parliament to redefine a founding document of Aotearoa New Zealand, that has profound constitutional import, in the way proposed.
9. Interpreting the statutory obligations that follow from the Treaty / Te Tiriti is properly the role of the courts, which ensures a dynamic and adaptive process of understanding its relevance over changing times and circumstances. That is a good thing.
10. The specialist Waitangi Tribunal has a valued role in exploring the relevance of the Treaty / Te Tiriti to specific instances and contexts that are brought before it and doing that based on expert knowledge and thorough inquiry. We therefore have existing, workable and reliable means of understanding the Treaty / Te Tiriti.

Divisive

11. The Bill seeks to inflame society by putting forward a provocative and divisive interpretation of the Treaty / Te Tiriti that has been dismissed as erroneous by numerous tangata whenua, scholars and submitters. The Ministry of Justice's Regulatory Impact Statement also favours the status quo over the Bill.
12. The proposal to put such a flawed proposition to a referendum, doubles down on that wrong-headed approach. A referendum would divide society, not settle the question of the meaning of the Treaty / Te Tiriti in our modern world.
13. Statutory interpretation is not appropriate by referendum. Such an approach would have the effect of inviting present-day peoples to rewrite the Treaty / Te Tiriti, not understand it. And you cannot or should not rewrite a founding document of this nation.

Summary

14. EDS holds the position that we have a process of interpreting the Treaty / Te Tiriti that is properly rooted in our country's society, constitutional norms and processes that is working and should not be interfered with in this way. The Bill should not proceed.